

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----X
DIANE C. DESOUSA
and THOMAS E. DESOUSA,
Plaintiffs,

-against-
RICHARD A. CALVAGNO II and
PATRICK J. KARCHER,
Defendants.

Index No: 600371/2021

**AFFIDAVIT IN SUPPORT
OF SUMMARY JUDGMENT
MOTION**

-----X
State of New York >
> ss.:
County of Nassau>

RICHARD A. CALVAGNO II, being duly sworn, deposes and says that:

1. I am a Defendant in the above action, fully familiar with all the facts set forth herein.

Following exhaustive discovery and depositions, I submit this affidavit in support of my underlying motion seeking summary judgment dismissing Plaintiffs' frivolous Complaint and counsel fees for having to defend against such meritless claims¹.

2. As public-school fences across LI denounce in varying plastic cup displays, "Hate Has NO Place Here." In my case, "here" is my home at 320 Grand Central Avenue in Amityville, NY, where I live my life peaceably, across the street from Plaintiffs.

3. That life, my life, has been blessed; blessed by a loving and supportive family, blessed by an abundance of friends who care for, help, respect and accept me (as I do them), and blessed by reputable employment that has enabled me to purchase my beautiful home. It appears however, that my blessings (and I) are the Plaintiff's afflictions as their Complaint accuses me (and the co-owner of the home who has never lived here and is not even charged with the complained of conduct) of being public and private "nuisances." We are not nuisances.

4. In fact, I am a kind, generous and proud gay man who, as Plaintiffs complain:

¹ All Pleadings are collectively annexed hereto as Exhibit "A"

- A. Yes, does drive a DODGE CHARGER HELLCAT automobile. The car is generally known to be loud, but not so prohibitively loud as to have been banned in NYS (or as far as I know, any other state, and I have not modified the car to make it louder, or drive it recklessly, as Plaintiffs falsely alleged but have failed to prove.)
- B. Yes, likes to share my blessings and good fortune with my friends and often (especially in the summer) invites neighbors (including on more than one occasion, even the Plaintiffs) and friends to barbeques and get togethers at my home; but I do not rent out my home as Plaintiffs falsely alleged, but have failed to prove.
- C. Yes, frequently allows friends to tie up their boat at my dock in my backyard (that Plaintiff cannot even see); but again, I do not rent out spaces, as Plaintiffs falsely alleged, but have failed to prove.

5. That conduct does not make me a nuisance as Plaintiffs irrationally insist. Rather, it makes me grateful to be able to live in the times we now live, openly embracing and embraced by, the unbiased acceptance of an enlightened time and community that no longer scorns me or my lifestyle.

6. I further note that the Plaintiff's picayune list of complaints, focusing not merely on my driving and the volume of my car, but rather and also finding fault with: a whopping two (2) parties I hosted in my yard; non-existent "debris" from permitted, approved and supervised construction projects that had the "potential" to attract vermin (that Plaintiffs called police and the building department about, and NO violations were issued for); and my decision to allow our neighbor (with whom Plaintiffs are apparently engaged in another lawsuit) to dock his boat in my backyard, as further proof of Plaintiff's intolerance, intentions and own nuisances...but not my own. I am not a nuisance.

7. It is extremely sad to me, that things have gotten to this point.²

² Plaintiff repeatedly requisitioned the police to our homes and street. **THE POLICE HAVE REPEATEDLY ADVISED THE PLAINTIFF THAT neither I nor MY CAR IS A NUISANCE.** Plaintiff has also reported me to the town who, having dispatched inspectors, have similarly **FAILED AND REFUSED TO ISSUE ANY VIOLATIONS FOR DEBRIS OR OTHER NUISANCE.** Still, and to prove my innocence, I installed at my home a RING doorbell (I believe the Plaintiffs may have done the same) to capture the truth. Ironically, the photos and videos captured Mr. DESOUSA (in his

8. As discovery and deposition have made clear, this lawsuit, calling me and my lifestyle a “nuisance,” is not an action based upon any supportable legal theory. Rather, it is borne of pure hate; maliciously motivated in bitter bias and prejudice. I beg this Court to tell Plaintiffs that “hate has no place here” in the courts of law either, and to grant my underlying motion.

STATEMENT OF FACTS SUPPORTING SUMMARY JUDGMENT

A. Pleadings Fail to Identify any Material Fact

9. The underlying action for an order adjudging me a public and private nuisance (and seeking injunctive relief and financial relief “in a sum to be determined by the Court” for unidentified damages the Plaintiffs never offered any proof of) was commenced on or about January 8, 2021 with the filing of the annexed³ Summons and Complaint.

10. My Answer with Affirmative Defenses and Counterclaim was duly filed and served in or about January 26, 2021.⁴

11. In the “Relevant Facts” section of their Complaint, the Plaintiffs allege that the noise from my car wakes them in the morning and has caused them pain and suffering. (NOTABLY, and despite due demand therefor, at deposition the Plaintiffs admitted that prior to the commencement of the action, they had NOT been treated by any medical doctor, psychologist or other therapist for alleged injuries they sustained from the conduct complained of. They also admitted at deposition, that they have not been prescribed any drugs for any injuries or ailments.⁵

POWERFUL JAGUAR) and not me, racing up and down the streets, walking with his wife up and down the streets (although they state that my driving prevents them from enjoying that simple act) and stalking, menacing and harassing me.

³ Please refer to Exhibit “A” previously annexed hereto.

⁴ Please refer to Exhibit “A” previously annexed hereto.

⁵ Annexed hereto as Exhibits “B” and “C” respectively are Plaintiffs’ deposition transcripts. The Court will note at pages 40 and 13 of Mr. and Mrs. DESOUSA’s transcripts, respectively, their admissions.

In short, Plaintiff's failed to identify, nevertheless prove, any compensatory damages they might have suffered from me or the "nuisance" my lifestyle presents.)

12. I know that it is the obligation of the Court to assume the allegations true, but discovery has been completed and, as set forth in this subsection, the testimony of third-party witnesses, evidentiary proof and notably LACK of proof, have failed to support the Plaintiffs otherwise "unsupported claims."

13. Preliminarily however, I ask this Court to consider the facts alleged in my counterclaim that suggest the Plaintiff's underlying complaint as nothing more than a nuisance itself, born of hate and prejudice. Indeed, if the sound of my car were the only complaint Plaintiffs lodged against me, I might be able to accept their complaint as something other than discrimination. The car is, as I have readily conceded, loud (but not so loud as to violate any controlling laws and **Plaintiffs' own "witnesses" established the truth of the documentary evidence I provided, assuring the Plaintiffs and this Court, that the car was not modified.**

When Plaintiff initially complained to me about the sound of my car, I tried to drive slowly, to minimize the noise my car made. Mrs. DeSousa is, from what I could gather, a lovely woman who, at deposition, was notably uncomfortable with her husband's decision to sue me. She answered questions about her alleged injuries and distress with her own question p. 13, "Do we really have to go this far?" thereafter admitting that she is not being treated by a psychiatrist, psychologist or any other therapist and that she does not take any prescription drugs for any other ailments.)

14. Tellingly however, the Plaintiffs' complaints did not stop there, but instead included a list of complaints that border on petty and frivolous, thus revealing their true motives and prejudices. Specifically, Plaintiffs complain that since I moved there in 2019:

(A.) I had two (2) parties at my home (concluding without any basis in fact or fiction that I “rented” my home as a catering hall, thereby creating a commercial business in a residential neighborhood. I did not and have never “rented” my home);

(B.) that I performed work at my home (I did, NOTABLY with municipal permit, supervision and approval, perform improvements which included the expansion of my driveway, to accommodate the vehicles Plaintiffs otherwise complained about my parking on the street) and that the construction debris was a nuisance that “could have” attracted pest and vermin infestation (there was no debris and no proof of infestation or treatment offered); and

1

(C.) that I am renting out dockspace in my backyard (again concluding without any basis in fact or fiction that I illegally “rented” the dock and am operating a commercial enterprise; I did not and do not rent dock space.) Plaintiffs also fictitiously accused me of “reckless driving” that the police have never cited me for (despite lying in wait for me as Plaintiffs repeatedly demanded they do.)

15. Indeed, all such unsupported allegations were unfounded by police or other independent third party witnesses or municipal inspectors whom Plaintiffs repeatedly summoned (and were also unsupported in discovery and at deposition.)

16. In support of this underlying motion for summary judgment, I note that the police, in fact, assured the Plaintiffs that my car and driving do not violate any laws or create a legally recognized nuisance and refused to cite me on any such offense that the Plaintiff failed to elicit or provide any proof of the allegations they allege: Indeed, and following the completion of discovery, Plaintiff’s **complaints remain UNSUPPORTED by any police reports, issued violations or warnings, third party independent proof of the volume of my car by a license professional, and, in fact, any other neighbors.**

17. It is respectfully submitted, that by complaining about “everything” in my lifestyle, Plaintiffs failed to prove “anything” actionable, other than Plaintiff’s own prejudices.

B. Discovery Failed to Identify any Material Fact

18. Numerous court conferences and related conference orders were issued and, following their direction, each party served its discovery demands and respective answers⁶, and each party noticed and conducted its depositions (addressed *infra*, and including Plaintiff's deposition of four (4) non-party witnesses none of whom substantiated any of the allegations the Complaint made. The transcripts are annexed as relevant under applicable subheading, *infra*.)

19. Discovery is complete. Still, and despite the opportunity to provide any proof of the allegations alleged (mostly "upon information and belief") Plaintiffs have wholly and completely failed to produce any evidentiary support for their complaints seeking to adjudge me a nuisance, guilty of intentionally inflicting "emotional distress."

C. Depositions Failed to Identify any "Material Fact"**i. Noise from My Cars**

20. Since the car seems to have been the issue that "fueled" (no pun intended) this litigation, and to which the most attention was devoted, I address that complaint first.

21. Specifically, Plaintiffs' Complaint alleges, in ¶9, under like kind subsection "A":

"Upon information and belief, Defendant's Dodge automobile has a modified exhaust system, which either fails to sufficiently muffle the automobiles sound... is extremely loud when running and becomes increasing louder with increased engine RPM's or speed"

that (¶12) "violate NYS and Suffolk County Noise Codes" (that they notably fail to identify.⁷) In ¶15 Plaintiffs report the 73-75 decibel noise levels the Plaintiffs personally (and thus unreliably)

⁶ Annexed hereto as Exhibit "D"

⁷ Google searches of "acceptable noise levels from cars in Suffolk County" bear the following results:

1. SUFFOLK COUNTY, NY/The Code / Part II Regulatory Local Laws, Chapter 618 Noise, that in §618-5(B)(6) entitled APPLICABILITY, actually excludes motor vehicles.
2. NYS Vehicle and Traffic Law 375 entitled "Equipment" provides in subparagraph 31 prohibits the modification of a muffler or exhaust system "to prevent any excessive or unusual noise." Neither I nor any professional, has modified my muffler or exhaust and

measured on eight (8) different occasions between November 27, 2020 and January 5, 2021 from their home (as they so testified.) With the exception of a 78 decibel reading on the last date, NONE of the doubtful readings, unreliably conducted by the biased Plaintiff, exceeded even the minimum NYS approved decibel range of acceptable state limits capped between 76 and 90 decibels.

22. Plaintiff's complaint, insofar as it complains of noise levels from my car, must therefor be dismissed. Despite discovery demands and other opportunities to do so, the Plaintiffs FAILED to provide or offer:

A. Any independent expert (or even their own) report of excessive noise levels prohibited by law.

B. Any police reports citing me for excessive noise (and notably, the Plaintiff was forced to admit that he repeatedly called the police to my home, his home and to sit at the end of our street to monitor the volume and that the POLICE repeatedly REFUSED to issue any noise violation to me.)

C. Any proof to suggest that I had "modified" my exhaust system (which I did NOT do and provided proof of.)

D. Any actionable damages the Plaintiffs suffered (if any, other than perhaps poisoning themselves with their own anger.)

Plaintiffs failed to make a *prima facie* showing of my alleged "nuisance" and each of their four (4) causes of action, based thereon, must be dismissed as a matter of fact and law (for which I refer this Court's attention to the affirmation of my attorney.)

23. In fact, and as is reflected in my May 11, 2023 deposition testimony⁸, commencing page 32:

3. The statutes and local laws do NOT, as best I can tell, identify any decibel levels, but it is worth noting that NYC's recently enacted SLEEP ACT as reported <https://www.thecity.nyc/2022/02/25/new-york-rolling-out-noise-law-listening-tech-for-souped-up-speedsters/> is said to "enforces the decibel limits set by the state's Vehicle and Traffic law, which, caps the sound between 76 and 90 decibels, depending on speed and vehicle type" and with the exception of one of the eight nevertheless unreliable readings the Plaintiff conducted from his living room window or elsewhere, NONE of the readings exceeded 75 decibels.

⁸ Annexed hereto as Exhibit "E"

A. I purchased the car in 2020 from Westbury Jeep Chrysler Dodge as a “stock” Dodge Charger Hellcat;

B. I did not make any modifications to the engine and,

C. I authenticated a letter⁹ I provided to Plaintiff from the dealer, signed by the dealer’s service director, Stephen Garguilo, attesting to the above.

24. To, I believe, further harass me and jeopardize my employment and reputation, Plaintiff’s noticed Mr. Garguilo (and two other Westbury Jeep employees), for third party depositions. Mr Garguilo’s¹⁰ was conducted on January 16, 2024. Mr. Garguilo appeared with an attorney (whom I assume he and the other third party witnesses all had to pay.) Mr. Garguilo testified to the “professional” relationship Plaintiff’s attorney knew (and noted, p. 10, line 19; a deliberate mention I noted as an intended threat to my employment) I shared with Westbury Jeep in connection with my employment. The witness was asked a series of questions meant to challenge the letter and its statement that the vehicle was not modified from its factory equipment” (p. 14, line 9.). The challenge was unsuccessful.

25. Plaintiffs not only failed to poke any holes in the letter, my denials and my defenses to the complaints they alleged, but more importantly, they failed to prove their own case in chief. They failed to provide any evidentiary facts that the car was somehow “modified” or to provide any source of the “information and belief” upon which they have harassed and forced me to incur tens of thousands of dollars in legal fees in the last few years. The car has NOT been modified.

26. Plaintiffs have failed to make a requisite legal showing of the complaints and causes of action they advance and their Complaint and causes of action relating thereto, must be summarily denied and dismissed based upon the contrary proof and testimony provided.

⁹ Annexed hereto as Exhibit “F”

¹⁰ Transcript dated January 16, 2024 is annexed hereto as Exhibit “G”

ii. BOAT SLIPS
 iii. CATERING¹¹

27. In ¶24 of their Complaint the Plaintiffs allege:

“...upon information and belief, during the 2020 boating season the Defendants rent boat slips to others”

and in ¶29, 30, citing two parties I hosted on October 24 and “on or about” November 28, 2020:

“Upon information and belief, the defendants have rented out, and continue to offer their back and sides yard for catered parties and events”

thereby “carrying on a commercial enterprise in a residential zone” that violates (notably unidentified) local and county zoning codes. Irresponsibly, Plaintiffs offer no source of their information and belief which is, to be kind, “mistaken.”

28. I do not, have not, and will not rent boat slips or my home, and despite all discovery demands, the Plaintiffs have failed to provide or offer any proof of such unsupported allegations, despite having interrogated our neighbors and my guests.

29. Plaintiffs noticed for deposition VINCENT CAMARDA, their next door neighbor with whom, I learned at deposition, the Plaintiffs are involved in an unrelated lawsuit¹² for a third party deposition conducted (via video conference from Florida where the witness lives 6 months

¹¹ The Complaint also includes a subsection “D” complaining that I accumulated “substantial litter” that, ¶39 “may attract and harbor insects and vermin” creating ¶41 “an eyesore and conditions which are ripe for insect/vermin infestation” diminishing the value and worth of Plaintiff’s home. The Plaintiff failed to provide any appraisals of his property, proof of infestation or damage to his property, or any proof (not even a photo) of the “substantial litter” that never existed.

¹² In fact, when asked to characterize his relationship with Plaintiff Tom DeSousa, Mr. Camarda responded, by so identified Lines:

3. A Not good.

4 Q And what, in your opinion,5 caused the relationship to deteriorate?

6 A Him cursing me out, threatening7 to kill me, rip my heart out. I could 8 just keep going. You want me to keep 9 going?

10 Q I want you to answer the1 1 question completely, sure.

12 A Yeah, so just -- suing me for my1 3 garage -- that's enough.”

Thereafter asking additional and unrelated questions he obviously wanted to use in his lawsuit against the witness.

a year) on February 1, 2024 to prove their case (although from the line of questioning it seemed they were more interested in gaining information for their other lawsuit.)

30. Mr. Camarda's testimony did NOT establish that I rented him or anyone else a boat slip, as the Plaintiffs *allegedly* called him to testify¹³. In fact, at p 27 Mr. Camarda testified that I have permitted him to keep his boat tied to my dock behind my home during the summer, "for a few months" and that he does NOT pay me to keep the boat there, but that I allow him to keep his boat there because I am "a good man."

31. In fact, I try to be a good man, good neighbor and good friend and, to prove the point, at P. 30, Mr. Camarda testified that I told him that he knew I had a wedding in my yard because I told him that I have "a friend that couldn't afford to get married at a place, so he was nice enough to let them use his yard." (He also testified, P. 23, he did not see "Rich Calvagno or his partner drive the black sedan, which you believe may be a Dodge" fast or aggressively on Grand Central Avenue.) My friend did not pay me for the use of my property and I was happy and proud to be able to offer her the use of my yard, without any costs to me, for the small wedding she deserved.

32. Plaintiffs have accused me of putting our entire neighborhood in danger. Yet, and while I learned from that deposition that the Plaintiffs and Mr. Camarda's other next-door neighbors (Jim Venezia and Pat Schneider) had joined in a lawsuit against Mr. Camarda (and Mr. Camarda testified that Plaintiffs were circulating something like a petition around the

¹³ As the Plaintiffs inquired as to the witness's education, employment, family history and other unrelated issues Mr. Camarda's attorney objected noting, P. 14, that "your summons and complaint are based upon some nuisance issues" and "we don't need to get into any personal stuff, especially because there is a litigation going on between the parties; and you know, at this point, that stuff doesn't seem to have any relevance to your questions here. So, let's keep it to what you want to ask him in regard to your summons and complaint."

neighborhood trying to enlist the support of our neighbors in their complaints against me) significantly:

- **NO other neighbors joined in Plaintiffs' lawsuit against me;**
- NO other neighbors lodged or made any complaints about the "nuisances" Plaintiff contrives; and
- NO other neighbor has supported Plaintiffs' complaints about the nuisance I allegedly present to the neighborhood

not even the neighbors who joined in the Plaintiffs' suit with Camarda!!!

33. Plaintiffs have wholly and completely failed to make what I understand to be a "*prima facie*" showing of the conduct or causes of action they complain about.

34. In total, Plaintiffs deposed four (4) non-party witnesses including our neighbor Mr. CAMARADA, and STEVEN GARGIULO, WILLIAM WURSTER, and PAUL VALENZANO who all work at Westbury Jeep.¹⁴ No witness testified to any modifications made to my car (most notably, because NO modifications were made,) despite Plaintiff's desperate, if not simply despicable efforts to prove me a nuisance. I am NOT a nuisance, but this lawsuit clearly is.

35. Discovery is complete and yet still, the Plaintiff is unable to present any genuine issue of material fact to support his complaints alleging me a nuisance or guilty of outrageous conduct to support his allegations that I intentionally inflicted upon them emotional distress. Without passing upon the determination of same, Plaintiffs have failed to identify any issues for this Court to even determine.

36. For all the aforementioned reasons, as well as the law presented in my attorney's annexed affirmation, I beg this court to dismiss Plaintiffs' complaint and the unsupported and contrarily proven causes of action it irresponsibly alleges without any evidentiary support and to

¹⁴ Deposition transcripts are annexed as Exhibit "G" and "H" respectively

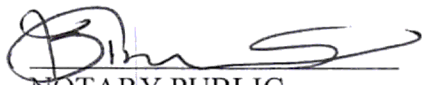
award to me summary judgment and an award of \$44,700.00 for legal fees (plus any additional fees to reply to any opposition papers) defending myself in this meritless litigation.

WHEREFORE, your Defendant prays for an order granting the relief requested in my annexed Order to Show Cause in its entirety, together with such other and further relief as to this Court may seem just and proper.



RICHARD A. CALVAGNO II

Duly sworn to before me this
17 day of April, 2024.



NOTARY PUBLIC

TRICIA YOLANDA SIMMS
Notary Public-State of New York
No. 01SI0005196
Qualified in Queens County
Commission Expires 04/06/2027